

HOUSE No. 4258

The Commonwealth of Massachusetts

PRESENTED BY:

Adam J. Scanlon

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to allowing spouses to serve as paid caregivers.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>3/21/2025</i>
<i>Tackey Chan</i>	<i>2nd Norfolk</i>	<i>9/25/2025</i>

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By Representative Scanlon of North Attleborough, a petition (subject to Joint Rule 12) of Adam J. Scanlon for legislation to authorize spouses to serve as caregivers in the MassHealth program for home-based care and services. Children, Families and Persons with Disabilities.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to allowing spouses to serve as paid caregivers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Notwithstanding any general or special law to the contrary, the secretary of health and
2 human services, in conjunction with the secretary of aging and independence, shall take action,
3 including requesting federal approval, if required, to permit spouses to serve as paid caregivers in
4 the MassHealth program. Any federal approvals that may be required to implement this section
5 shall be filed no later than 6 months after the effective date of this act.